

CHAPTER 4.

An Act for taking the Census for Great Britain in the year one thousand nine hundred and one.

[27th March 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. A census for Great Britain shall be taken in the year one thousand nine hundred and one, and the census day shall be Sunday the thirty-first day of March in that year. Census to be taken in 1901.

2.—(1.) The Local Government Board shall superintend the taking of the census. Central authority for and expenses of census.

(2.) The Registrar General shall, subject to the approval of the Board, prepare and issue such forms and instructions as he deems necessary for the taking of the census.

(3.) The expenses incurred, with the approval of the Treasury, for the purposes of the census, shall be paid out of money provided by Parliament.

3.—(1.) For the purposes of the census every registration district shall be divided into enumeration districts, and an enumerator shall be appointed for each enumeration district. Enumeration districts and enumerators.

(2.) Overseers of the poor and relieving officers for poor law unions shall, if so required by the Local Government Board, act as and be enumerators for the purposes of this Act.

4.—(1.) Schedules shall be prepared by or under the direction of the Local Government Board for the purpose of being filled up by or on behalf of the several occupiers of dwelling-houses, with the following particulars, and no others, namely, particulars showing— Preparation and filling up of schedules.

- (a) the name, sex, age, profession or occupation, condition as to marriage, relation to head of family, birth-place, and (where the person was born abroad) nationality of every living person who abode in every house on the night of the census day; and
- (b) whether any person who so abode was blind or deaf and dumb, or imbecile or lunatic; and
- (c) where the occupier is in occupation of less than five rooms, the number of rooms occupied by him; and
- (d) in the case of Wales or the county of Monmouth, whether any person who so abode (being of three years of age or upwards) speaks English only or Welsh only, or both English and Welsh.

(2.) Every enumerator shall in the course of the week ending on the Saturday next before the census day leave at every dwelling-house within his enumeration district one or more of these schedules for the occupier thereof or of any part thereof, and on every such schedule shall be plainly expressed that it is to be filled

up by the occupier for whom it is left, and that the enumerator will collect all such schedules within his district on the Monday then next following.

(3.) Every occupier for whom any such schedule has been so left shall fill up the schedule, to the best of his knowledge and belief, so far as relates to all persons dwelling in the house, tenement, or apartment occupied by him, and shall sign his name thereto, and shall deliver the schedule so filled up to the enumerator when required so to do.

(4.) In this section the expression "dwelling-house" shall include every building and tenement of which the whole or any part is used for the purpose of human habitation, and where a dwelling-house is let or sub-let in different tenements or apartments and occupied distinctly by different persons or families a separate schedule shall be left with or for and shall be filled up by the occupier of each such distinct tenement or apartment.

(5.) For the purposes of this section, a person who is travelling or at work on the night of the census day, and who returns to a house on the morning of the following day, shall be treated as abiding in that house on the night of the census day.

Collection,
correction,
and copying
of schedules.

5.—(1.) Every enumerator shall visit every house in his district, and shall collect all the schedules so left within his district, from house to house, and so far as may be possible on the day next following the census day, and shall complete such of the schedules as on delivery thereof to him appear to be defective, and correct such as he finds to be erroneous, and shall copy the schedules, when completed and corrected, and shall furnish a return, according to the best information which he is able to obtain, of all the persons present within his district on the night of the census day, but not included in the schedules collected by him.

(2.) Every enumerator shall also furnish the prescribed particulars as to whether or not houses are occupied or inhabited, and as to the counties, boroughs, parishes, and other areas for electoral or administrative purposes, and the ecclesiastical parishes or districts, in which the houses are situate.

Enumeration
in public and
charitable
institutions.

6. The governor, master, or chief resident officer of every prison, workhouse, hospital, or lunatic asylum, and of every public or charitable institution which may be determined upon by the Registrar General, shall be the enumerator of the inmates thereof, and shall conform to such instructions as may be sent to him by the authority of the Local Government Board for obtaining the returns required by this Act, so far as may be practicable, with respect to the inmates.

Returns of
persons
travelling or
on shipboard
or not in
houses.

7. The Registrar General shall, subject to the approval of the Local Government Board, obtain returns of the particulars required by this Act with respect to persons who during the night of the census day were travelling or on shipboard, or for any other reason were not abiding on that night in any house of which account is to be taken by the enumerators, and shall include these returns in the abstracts to be made under this Act.

8.—(1.) The Registrar General shall, subject to the approval of the Local Government Board, prepare a preliminary abstract and a detailed abstract of the census returns. Abstracts of returns.

(2.) The preliminary abstract shall be printed and laid before both Houses of Parliament within five months next after the census day, if Parliament be then sitting, or if Parliament be not then sitting, then within the first fourteen days of the session then next ensuing.

(3.) The detailed abstract shall be printed and laid before both Houses of Parliament at as early a date as may be found practicable.

9. The Registrar General may, if he thinks fit, at the request and cost of the council of any county, borough, or urban district, cause abstracts to be prepared containing statistical information with respect to the county, borough, or district, which can be derived from the census returns but is not supplied by the census report, and which, in his opinion, the council may reasonably require. Power to supply further abstracts to local authorities.

10.—(1.) Instructions issued under this Act may prescribe, among other things— Matters to be prescribed by instructions.

- (a) the mode in which enumeration districts are to be formed and enumerators appointed; and
- (b) the duties of superintendent registrars, registrars, enumerators, and other persons employed under this Act; and
- (c) the mode in which the householders' schedules are to be copied and the persons to whom the schedules and copies are to be delivered; and
- (d) the persons by whom and the mode in which the copies are to be summarised, verified, examined, corrected, and otherwise dealt with; and
- (e) the allowances to be paid to persons employed under this Act; and
- (f) the mode in which and the persons by whom the amount of the allowances payable in respect of each registration district is to be certified, and the persons by whom and the mode in which the payments are to be made; and
- (g) anything authorised by this Act to be prescribed.

(2.) The scale of allowances payable under this Act shall be subject to the approval of the Treasury.

11.—(1.) If any superintendent registrar, registrar, enumerator, or other person employed under this Act, makes wilful default in the performance of any of his duties under this Act, or makes any wilfully false declaration, he shall for each offence be liable on conviction under the Summary Jurisdiction Acts to a fine not exceeding five pounds. Penalties for offences.

(2.) If any occupier for whom a schedule is left under this Act—

- (a) wilfully refuses, or without lawful excuse neglects, to fill up the schedule to the best of his knowledge and belief, or to sign and deliver it as by this Act required; or

(b) wilfully makes, signs, or delivers, or causes to be made, signed, or delivered, any false return of any matter specified in the schedule; or

(c) refuses to answer, or wilfully gives a false answer to, any question necessary for obtaining the information required to be obtained under this Act;

he shall for each offence be liable on conviction under the Summary Jurisdiction Acts to a fine not exceeding five pounds.

(3.) If any person employed in taking the census communicates, without lawful authority, any information acquired in the course of his employment, he shall be guilty of a breach of official trust within the meaning of the Official Secrets Act, 1889, and that Act shall apply accordingly.

52 & 53 Vict.
c. 52.

Application
to Scotland.

12. In the application of this Act to Scotland—

(1.) “Secretary for Scotland” shall be substituted for “Local Government Board” and “Board”; “Registrar General for Scotland” for “Registrar General”; “registration district” for “registration sub-district”; “burgh” for “borough”; “poorhouse” for “workhouse”; and “police burgh” for “urban district”;

(2.) The expression “council” shall include the commissioners of a police burgh;

(3.) The schedules under this Act shall include particulars showing whether any person who abode in any house on the night of the census day (being three years of age or upwards) speaks English only or Gaelic only, or both English and Gaelic;

(4.) The particulars to be furnished by the enumerators shall show, with respect to each dwelling-house, the number of rooms, including a kitchen (if any) as a room, having a window, not being a window with a borrowed light;

(5.) Sheriffs, sheriff clerks, chief magistrates, town clerks, inspectors of poor and assistant inspectors of poor, shall perform such duties as may be prescribed, including, if so prescribed, such duties as were imposed on them by the Census (Scotland) Act, 1890.

53 & 54 Vict.
c. 38.

Extent of Act
and short title.

13.—(1.) This Act shall not extend to Ireland.

(2.) This Act may be cited as the Census (Great Britain) Act, 1900.

CHAPTER 5.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army.

[9th April 1900.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law: